

Sanctions

Sanctions are denied because Defendant acted with substantial justification.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2401630	DURO VS CITY OF INDIO	MOTION TO SET ASIDE DISMISSAL ON 1ST AMENDED COMPLAINT OF NICHOLAS DURO BY NICHOLAS DURO

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

This case arises from Plaintiff Nicholas Duro's ("Plaintiff") April 2023 detention, alleged assault by private security personnel, and subsequent arrest by City of Indio police officers at the Coachella Valley Music and Arts Festival in Indio, California. (First Amended Complaint ["FAC"] ¶ 45.) Plaintiff alleges that security personnel (including Defendants Joshua Titel and Carrie Waugh) misidentified him as the perpetrator of a wristband theft, and that Titel violently threw him to the ground, placed him in a chokehold, and detained him, causing a concussion and traumatic brain injury, while Indio Police Officers Oscar Santos and Russell Peddycord subsequently arrested him for trespassing without reviewing video footage or summoning medical care. (*Id.* at ¶¶ 45–50, 59.)

Plaintiff filed his original Complaint on March 26, 2024, and his operative First Amended Complaint ("FAC") on September 24, 2024, asserting eight causes of action against the City of Indio, County of Riverside, Goldenvoice, AEG Presents, Anschutz Entertainment Group, Apex Security Group, Contemporary Services Corporation, C.I. Security Services, and the individual defendants: (1) Violation of the Bane Civil Rights Act (Civ. Code § 52.1); (2) Failure to Summon Immediate Medical Care (Gov. Code § 845.6); (3) Negligence; (4) Negligent Hiring/Supervision; (5) False Arrest/False Imprisonment; (6) Assault and Battery; (7) Violation of the Right of Protection from Bodily Restraint or Harm (Civ. Code § 43); and (8) Intentional Infliction of Emotional Distress.

The following facts are undisputed or established by the record:

On April 11, 2025, Defendants served initial discovery on Plaintiff. (Marshall Decl. ¶ 6.)

After a meet-and-confer process, Plaintiff served responses on June 6, 2025, and further responses on September 4, 2025, all of which were deficient. (*Id.*)

Defendants served a second set of discovery on July 11, 2025, to which Plaintiff served deficient responses on September 4, 2025. (*Id.*)

On September 10, 2025, Plaintiff's counsel Kaveh Navab informed Plaintiff of his intent to withdraw from the case. (*Id.* at ¶ 7.)

On October 31, 2025, the same day Defendants filed four motions to compel discovery, Mr. Navab informed Plaintiff that he would be filing a motion for leave to withdraw. (*Id.*)

On November 14, 2025, Mr. Navab filed and served on Plaintiff a motion to be relieved as counsel. (*Id.* at ¶ 8, Ex. B.) The motion included prominent warnings that if granted, Plaintiff would be solely responsible for the case and would have to comply with all court rules and applicable laws. (*Id.*) The notice specifically warned that if Plaintiff failed to comply or failed to appear at hearings, action might be taken against him and he could lose his case. (*Id.*)

On January 20, 2026, the Court heard and granted the motion to be relieved as counsel. (*Id.* at ¶ 13.) Plaintiff did not file an opposition to the motion and did not appear at the hearing. (*Id.*)

On January 21, 2026, Defendants AEG Presents, LLC and Anschutz Entertainment Group, Inc. filed motions for summary judgment. (*Id.* at ¶ 11.)

On January 28, 2026, Plaintiff filed an ex parte application seeking an order continuing all pending hearings and staying proceedings in the case because he was unrepresented with multiple sanctions motions, dispositive motions, and trial pending. (*Id.* at ¶ 15, Ex. D.) In his supporting declaration dated January 23, 2026, Plaintiff testified under penalty of perjury that at the time of counsel's withdrawal, four motions to compel and for monetary sanctions set for February 2, 2026, a motion for protective order set for February 6, 2026, motions for summary judgment and summary adjudication set for April 29, 2026, and trial set for May 15, 2026, were all pending. (*Id.*) Plaintiff acknowledged that as of January 21, 2026, he was "at serious risk of sanctions, dismissal, or loss of my claims." (*Id.*)

On February 4 and 5, 2026, Defendants served additional discovery requests. (*Id.* at ¶ 17.) Responses were due March 10, 2026. (*Id.*)

On February 18, 2026, the Court heard the first set of discovery motions. (*Id.* at ¶ 16.) Plaintiff did not appear. (*Id.*) The Court granted the motions in substantial part. (*Id.*) Compliance was required by March 10, 2026. (*Id.*) Plaintiff did not comply. (*Id.*)

On February 25, 2026, Defendants served a third set of discovery. (*Id.* at ¶ 18.) Responses were due April 1, 2026. (*Id.*) Plaintiff did not respond. (*Id.*)

On March 26, 2026, Defendants served their expert designations. (*Id.* at ¶ 19.) Plaintiff did not serve a designation and did not disclose any expert witnesses. (*Id.*)

The deadline for Plaintiff to serve oppositions to the motions for summary judgment was March 26, 2026. (*Id.* at ¶ 20.) Plaintiff did not oppose the motions. (*Id.*)

On March 27, 2026, Defendants filed a second set of ten (10) discovery motions, including a motion for terminating sanctions. (*Id.* at ¶ 21.) Plaintiff did not oppose any of these motions. (*Id.* at ¶ 23.)

On April 15, 2026, the Court granted the motion for terminating sanctions, dismissing the case. (*Id.* at ¶ 25.) The Court also granted the unopposed motions for summary judgment filed by AEG Presents, LLC and Anschutz Entertainment Group, Inc. (*Id.*) Plaintiff appeared remotely at the hearing and requested more time and promised to comply with his discovery obligations. (*Id.* at ¶ 26.) Plaintiff indicated it was still his intention to proceed in pro per but gave no indication as to what he had been doing for the prior three months since his last appearance before the Court in January. (*Id.*)

On April 22, 2026, Plaintiff, in pro per, filed the instant motion to set aside dismissal, terminating sanctions, and summary judgment orders under CCP § 473(b). He argues that the dismissal resulted from mistake, inadvertence, surprise, and excusable neglect, particularly following the withdrawal of his prior counsel, which left him without adequate guidance on his discovery obligations. Plaintiff emphasizes that his conduct was not willful, claiming confusion and reliance on his former attorney's assurances about compliance with discovery requirements. He contends that he is now prepared to fulfill all discovery requirements and present his case on its merits, including providing video evidence that he believes contradicts Defendants' anticipated defenses.

In opposition, Defendants argue that Plaintiff has not presented new facts or evidence to warrant relief and that his claims of confusion and neglect do not amount to the excusable neglect specified under section 473(b). They highlight that Plaintiff was aware of his obligations and the consequences of failing to comply, stating that his previous assertions of needing more time are mere repetitions of past requests. Defendants contend that Plaintiff's failure to act diligently over a lengthy period, including his noncompliance with discovery orders and lack of opposition to multiple motions, justifies the sanctions and dismissal as necessary measures to protect the integrity of the Court's process.

Motion to Set Aside

CCP § 473(b) authorizes the court to grant discretionary relief from "a judgment, dismissal, order, or other proceeding taken against [a party] through his or her mistake, inadvertence, surprise, or excusable neglect." (CCP §473(b).) The application for relief must be made "within a reasonable time, in no case exceeding six months" after entry of the judgment or order. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 979.) The party seeking relief bears the burden of proof in establishing a right to such relief. (*Hopkins & Carley v. Gens* (2011) 200 Cal.App.4th 1401, 1410.) This is a "double" burden: the moving party must show both a satisfactory excuse for the default and diligence in making the motion after discovery of the default. (*Id.*)

California courts favor disposing of cases on their merits, and any doubts in applying section 473 are resolved in favor of the party seeking relief. (*Rappleyea, supra*, 8 Cal.4th at 980.) However, this policy favoring trial on the merits "cannot invariably prevail over competing policies, including those that 'favor getting cases to trial on time, avoiding unnecessary and prejudicial delay, and preventing litigants from playing fast and loose with the pertinent legal rules and procedures.'" (*Hopkins & Carley v. Gens* (2011) 200 Cal.App.4th 1401, 1415 [internal quotation omitted].) "[Courts] do not act as guardians for incompetent parties or parties who are grossly careless as to their own affairs." (*Id.* [internal quotation marks & quotation omitted].) "When inexcusable neglect is condoned even tacitly by the courts, they themselves unwittingly become instruments undermining the orderly process of the law." (*Id.* [internal quotation marks & quotation omitted].)

A party who voluntarily represents himself or herself is not entitled to any more or less consideration than a represented party. (*Rappleyea, supra*, 8 Cal.4th at 985.) The law casts upon every litigant "a duty to take timely and adequate steps to retain counsel or to act in his or her own person to avoid an undesirable judgment." (*Hopkins & Carley, supra*, 200 Cal.App.4th at 1413 [internal quotation marks & quotation omitted].) "Before a [party] can secure relief under section 473(b) based on a failure to adequately defend himself, he must show that in arranging for his defense . . . he has exercised such reasonable diligence as a man of ordinary prudence usually bestows upon important business." (*Id.* [internal quotation marks & quotation omitted].)

"The law does not entitle a party to proceed experimentally without counsel and then turn back the clock if the experiment yields an adverse result." (*Id.*) "[A]ny alleged ignorance of legal matters or failure to properly represent himself can hardly constitute mistake, inadvertence, surprise, or

excusable neglect as those terms are used in section 473. [Citation.] Rather, when a litigant accepts the risks of proceeding without counsel, he or she is stuck with the outcome and has no greater opportunity to cast off an unfavorable judgment than he or she would if represented by counsel.” (*Id.* [internal quotation marks & quotations omitted].)

“Although an honest mistake of law is a valid ground for relief where a problem is complex and debatable, ignorance of the law coupled with negligence in ascertaining it will certainly sustain a finding denying relief.” (*A & S Air Conditioning v. John J. Moore Co.* (1960) 184 Cal.App.2d 617, 620.) “[T]he determining factors are the reasonableness of the misconception and the justifiability of lack of determination of the correct law.” (*Hopkins & Carley, supra*, 200 Cal.App.4th at 1413.)

Under general agency principles, an attorney’s knowledge is imputed to the client, even where the attorney does not actually communicate with the client, who thus lacks actual knowledge of the imputed fact. (*Roche v. Hyde* (2020) 51 Cal.App.5th 757, 797.) “[A] party who seeks relief under section 473 on the basis of mistake or inadvertence of counsel must demonstrate that such mistake, inadvertence, or general neglect was excusable ‘because the negligence of the attorney . . . is imputed to his client and may not be offered by the latter as a basis for relief.’” (*Carroll v. Abbott Laboratories, Inc.* (1982) 32 Cal.3d 892, 898.)

An exception exists “where the attorney’s neglect is of that extreme degree amounting to *positive misconduct*, and the person seeking relief is relatively free from negligence The exception is premised upon the concept that the attorney’s conduct, in effect, *obliterates the existence of the attorney-client relationship*.” (*Id.*; *Kendall v. Barker* (1988) 197 Cal.App.3d 619, 626 [internal quotation marks & quotation omitted].)

Here, Plaintiff moves to set aside the dismissal, terminating sanctions, and summary judgment orders under CCP § 473(b), arguing that the dismissal resulted from mistake, inadvertence, surprise, and excusable neglect, particularly following the withdrawal of his prior counsel, which left him without adequate guidance on his discovery obligations. Defendants oppose, arguing that Plaintiff’s claimed “procedural confusion” does not constitute mistake, inadvertence, or excusable neglect under section 473(b), that he had actual knowledge of all pending matters as early as January 2026, that a pro per litigant’s ignorance of the law is not a ground for relief, and that Plaintiff has demonstrated no diligence in prosecuting this case.

Plaintiff contends that his failure to comply with discovery obligations and to oppose dispositive motions resulted from “mistake, inadvertence, surprise, and excusable neglect” arising from counsel’s withdrawal and his “procedural confusion” as a self-represented litigant. (Pl.’s Mot. p. 3.) This showing is insufficient as a matter of law. Moreover, on January 28, 2026, this court specifically inquired and discussed with Plaintiff the responsibilities and risks involved with self representation and Plaintiff stated he understood.

Plaintiff has failed to identify any concrete actuating mistake. It is Plaintiff’s burden to specify the actual cause of his failure to present a defense and explain why that failure should be excused. (*Hopkins & Carley, supra*, 200 Cal.App.4th at 1410.) He asserts generally that he “encountered procedural confusion” and “did not fully appreciate the consequences” of his failures. (Pl.’s Mot. p. 3.) These vague assertions do not constitute a mistake demonstrating grounds for relief. “It is simply not enough to assert a general state of misapprehension or ignorance on some subject bearing on a possible defense.” (*Hopkins & Carley, supra*, 200 Cal.App.4th at 1410.)

Second, Plaintiff’s claimed lack of understanding of his discovery obligations and procedural confusion cannot constitute excusable neglect for a pro per litigant. One who voluntarily represents himself is not entitled to any more or less consideration than a lawyer. (*Id.* at 1413.)

Any alleged ignorance of legal matters or failure to properly represent himself cannot constitute mistake, inadvertence, surprise, or excusable neglect as those terms are used in section 473. (*Id.*) Plaintiff was first informed of the need to retain new counsel on September 10, 2025. (Marshall Decl. ¶ 7.) He has offered no explanation for his failure to do so.

The law does not permit a party to proceed in pro per and then seek relief based on ignorance of legal procedures. (*Hopkins & Carley, supra*, 200 Cal.App.4th at 1413.) Plaintiff voluntarily chose to represent himself after his counsel withdrew. He is not entitled to greater consideration than a represented party. (*Rappleyea, supra*, 8 Cal.4th at 984–85.) Plaintiff has therefore failed to identify any cognizable mistake, inadvertence, or excusable neglect under section 473(b).

Plaintiff's claim that he did not understand his discovery obligations or the status of pending motions is contradicted by his own testimony under penalty of perjury and the record in this matter. In his declaration dated January 23, 2026, just three days after counsel's withdrawal, Plaintiff testified that four motions to compel and for monetary sanctions, a motion for protective order, motions for summary judgment, and trial were all pending. (Marshall Decl. ¶ 15, Ex. D.) Plaintiff acknowledged he was at serious risk of sanctions, dismissal, or loss of his claims. (*Id.*) This admission establishes that Plaintiff had actual knowledge of the procedural status of the case no later than January 23, 2026. (*Id.*)

Moreover, knowledge of the discovery disputes and pending motions was imputed to Plaintiff through his counsel during the period before counsel's withdrawal on January 20, 2026. (See *Roche, supra*, 51 Cal.App.5th at 787.) Plaintiff has pointed to no "positive misconduct" by his former counsel that would warrant an exception to the general rule of imputation. (See *Carroll, supra*, 32 Cal.3d at 898 [finding an exception "where the attorney's neglect is of that extreme degree amounting to *positive misconduct*, and the person seeking relief is relatively free from negligence"] [*italics in original*].) To the contrary, the record demonstrates that counsel properly warned Plaintiff of his responsibilities. (Marshall Decl. ¶ 8, Ex. B.) The motion to be relieved as counsel, served on Plaintiff on November 14, 2025, expressly warned that Plaintiff would be solely responsible for the case, would have to comply with all court rules and laws, and could lose his case if he failed to do so. (*Id.*) Plaintiff therefore had both actual knowledge, by his own sworn admission, and constructive knowledge through counsel, of the pending motions, his discovery obligations, and the consequences of noncompliance.

Even if Plaintiff could establish an excusable mistake, he has failed to demonstrate diligence in seeking relief or in complying with his obligations as a litigant. The critical failures underlying the terminating sanctions occurred well after counsel's withdrawal. Plaintiff offers no explanation for his failure to comply with any of them. His assertion that he is now "ready to deliver" discovery responses immediately (Pl.'s Mot. p. 4) is unpersuasive given that some discovery has been outstanding since April 2025. (Marshall Decl. ¶ 6.) Most importantly, Plaintiff has still not served the delinquent discovery responses, despite filing this motion and asserting his readiness to do so. This failure undermines any claim of diligence or good faith.

While California courts favor resolving cases on their merits, this policy cannot invariably prevail over competing policies favoring timely resolution, avoiding prejudicial delay, and preventing litigants from playing fast and loose with legal rules and procedures. (*Hopkins & Carley, supra*, 200 Cal.App.4th at 1415.) Courts "do not act as guardians for incompetent parties or parties who are grossly careless as to their own affairs." (*Id.* [*internal quotation marks & quotation omitted*].)

Plaintiff's conduct demonstrates "gross carelessness" over a period exceeding sixteen months.

In light of these failures, Plaintiff's conduct demonstrates a disregard for his legal obligations, underscoring that the policy favoring trial on the merits cannot protect him from the consequences of his conduct.

Relief from Summary Judgment Orders

Plaintiff also seeks relief from his failure to oppose the summary judgment motions filed by AEG Presents, LLC and Anschutz Entertainment Group, Inc. The same analysis applies. Plaintiff had actual knowledge of the pending summary judgment motions no later than January 23, 2026. (Marshall Decl. ¶ 15.) Opposition briefs were due March 26, 2026, approximately two months after counsel's withdrawal. (*Id.* at ¶ 20.) Plaintiff offers no excuse for his failure to file oppositions other than generalized procedural confusion, which is insufficient under the authorities discussed above.

Plaintiff's assertion that he possesses video evidence demonstrating triable issues of fact does not warrant relief under section 473(b). Plaintiff had ample opportunity and time to present this evidence in opposition to the summary judgment motions but failed to do so.

Based on the foregoing, the Court must deny the instant request for relief.